

Rakesh Khanna v. Electricity Ombudsman

Allahabad High Court · Division Bench · 12 March 2018 · WRIT - C No. 9057 of 2018 · **Liberty to file a fresh clause 6.15 objection; recovery stayed six weeks.**

HEADNOTE

Clause 6.15 of the U.P. Electricity Supply Code, 2005 gives a consumer a statutory right to object to the correctness of a bill. Where recovery of electricity dues as arrears of land revenue proceeded without a decision on such an objection, the High Court, without examining merits, granted liberty to file a fresh objection for a speaking order and kept the recovery citation in abeyance for six weeks or until that decision, whichever was earlier.

FACTUAL SUMMARY

Rakesh Khanna challenged a 10 October 2017 recovery citation under section 5 of the Uttar Pradesh Government Electrical Undertakings (Dues Recovery) Act, 1958 for Rs 59,57,344, and an Ombudsman order of 3 August 2017 rejecting his reference. He said his 28 August 2017 registered-post objection to a PD bill of 17 August 2017 (11 July–30 September 2016) was still undecided, contrary to clause 6.15, when the Tehsildar was asked to recover. The licensee denied any objection on record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.15

objection to bill correctness before recovery

HOLDING

Clause 6.15 confers a statutory right on the consumer to object to the correctness of a bill. Without deciding whether any objection had been received or the merits of the dues, the Court granted liberty to file a fresh objection within three weeks; respondent no. 2 was to decide it strictly in accordance with law by a speaking order within two weeks; recovery under the citation dated 10 October 2017 was to remain in abeyance for six weeks or until that decision, whichever was earlier; default in filing the objection would dismiss the writ. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Clause 6.15 of the U.P. Electricity Supply Code, 2005 gives a consumer a statutory right to object to the correctness of a bill.. ¶ 1

clause-6.15-two-year-bar-mandatory-licensee-duty-to-act Clause 6.15 of the U.P. Electricity Supply Code, 2005 gives a consumer a statutory right to object to the correctness of a bill.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PD BILL, THE OMBUDSMAN ORDER OF 3 AUGUST 2017, AND WHETHER THE 28 AUGUST 2017 OBJECTION WAS RECEIVED

The Court expressed no opinion on merits and did not resolve the licensee's denial that any objection was on record. ¶ 1